DIRECTION

Doc Type	Form	**Issue Date**	1 September 2021
Doc. No.	SOP-APS-001	**Eff. Date**	1 September 2021
IP	Food Safety Agency (Pty) Ltd	**Rev. Date**	1 January 2023
Designed by	N Bergh	**Revision**	V5
Approved by	Chief Executive Officer		

Abattoir/Importer/Repacker/Retailer Facility	Spar - Vryheid
Owner / Manager / Representative	Bongani Khubone
Physical Address	Corner of East and Utrecht Vryheid
E-Mail Address	Andile.Simelane@retail.spar.co.za
Contact Number	0349814181
Date of Visit	17/12/2025
Nature of Inspection	Inspection
Direction Reference Number	Spar - Vryheid/202/17/12/2025/02

The products listed and described below and which have been marked or pointed out by me personally, are being sold / imported, are in contravention of Section 3 (1) of the Agricultural Production Standards Act, 1990(Act 119 of 1990), read in conjunction with the relevant regulations regarding the sale of products in terms of Section 15 of the Act.

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☑ **DIRECTION:** You are hereby directed in terms of **Section 3A, (1) (b)** of the said Act to:

Rectify the non-conformity as mentioned below before or on **19/01/2026**

☐ **SEIZURE:** The owner or person in charge of the place, premise or conveyance failed to comply with the direction (Number: _____) issued in terms of section 3A (1)(b) of the said Act and thereby committing an offence in terms of section 11 (1)(d). The product is therefore seized by the Executive Officer: Agricultural Product Standards in terms of section 7 (1)(c) and 8 of the said Act with immediate effect.

Nature of Direction	Marking Requirements / Container and Outer Containers
Rectify the non-conformity as mentioned below before or on	**19/01/2026**

DEVIATIONS (NON-CONFORMITIES)

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Point	Product Name	Nature of Deviation from Regulation	Regulation Number
1	Fresh Chicken Whole Bird	Container Lettering-Class or Other Designation Indication	[Reg. 8 (1)(a), (b), (e), (f), (k) & Reg. 9]

Comments (if found)

1. The class designation is indicated incorrectly as "Whole Chicken" instead of "Flattie". The food stuff added (Garlic and Lemon) is not indicated as part of the applicable class designation.

ACTIONS AND REMARK

REMARKS
Direction issued and discussed with Client

Restricted Particulars (if found)

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SIGNATURES	INSPECTOR NAME:	DIMAKATSO MODIBA	OWNER / AUTHORISED MANAGER:	Bongani Khubone
	INSPECTOR SIGNATURE:		OWNER / AUTHORISED MANAGER SIGNATURE:	

Please note:
The abattoir, production plant, retailer, processing or repacking or importer, can apply for dispensation with the Executive Officer: Agricultural Product Standards Act at the Department of Agriculture, Land Reform and Rural Development (DALRRD) previously the Department of Agriculture, Forestry and Fisheries (DAFF).